

		trial court exceeded its discretion to hear the motion to compel because the plaintiff had not made a motion to reopen discovery and because there was nothing in the record to show that the trial court had decided that discovery should be reopened based on the relevant circumstances. (<i>Id.</i> at p. 1588.) Here, the Court granted Defendants’ March 13, 2025 Ex Parte Application to Advance Motion to Compel and Shorten Time. (ROA 854 [03/14/25 Minute Order].) However, the <i>Pelton-Shepherd</i> court found that Code of Civil Procedure section 2024.050 specifies that leave to reopen discovery may be granted “[o]n motion of any party.” (Code Civ. Proc., § 2024.050, subd. (a).) “Moreover, such a motion must be accompanied by a meet and confer declaration, and in exercising its discretion to grant or deny the motion the court must consider various factors, including (but not limited to) ‘[t]he necessity and the reasons for the discovery’ and ‘[t]he diligence or lack of diligence of the party seeking ... the hearing of a discovery motion, and the reasons that ... the discovery motion was not heard earlier.’ (Code Civ. Proc., § 2024.050, subds. (a) & (b)(1), (2).)” (<i>Pelton-Shepherd</i>, <i>supra</i>, 165 Cal.App.4th at pp. 1586–1587.) Defendants’ March 13, 2025 Ex Parte Application does not satisfy the requirements of Code of Civil Procedure section 2024.050. The Ex Parte Application is not a noticed motion; Defendants did not engage in the required meet and confer; and the Application did not request that discovery be reopened or require the court to consider the necessary factors. The motion to compel deposition is denied because discovery is closed, and Defendants did not file a motion for leave to reopen discovery. Thus, the Court does not have discretion to consider the motion to compel deposition. Plaintiff’s request for sanctions is denied. The court did not consider Plaintiff’s Sur-Reply. It was not material to the disposition of the motion. Defendants to give notice. Defendants and their counsel shall appear at the OSC re Sanctions set for Friday, 4/18/25 at 10:00.
55	Rexford Industrial- Berry LLC v Alatus Aerosystems 23-01326669	Demurrer to Complaint x2 by DEFT Defendant Triumph Group, Inc. demurs to the Complaint, the first cause of action for declaratory relief (tenant) and the second cause of action for declaratory relief (guarantor) on the grounds that there is another action pending between the same parties on the same cause of action, Code of Civ. Proc. § 430.10(c); and failure to state sufficient facts under Code

	of Civ. Proc. § 430.10 (e). The Demurrer is OVERRULED in full. Defendant Alatus Aerosystems demurs to the first cause of action for declaratory relief (tenant) on the grounds that there is another action pending between the same parties on the same cause of action, Code of Civ. Proc. § 430.10(c); and failure to state sufficient facts under Code of Civ. Proc. § 430.10 (e). The Demurrer is OVERRULED in full. Because the grounds for demurrer are substantially similar, they are addressed together herein. <u>Statutory Abatement per Code of Civil Procedure Section 430.10(c) - Overruled</u> A demurrer under Code of Civ. Proc. § 430.10(c) is a plea in abatement. A demurrer lies when there are two actions pending in California state courts "between the same parties on the same causes of action." (Code of Civ. Proc. § 430.10(c).) "In determining whether the causes of action are the same for purposes of pleas in abatement, the rule is that such a plea may be maintained only where a judgment in the first action would be a complete bar to the second action." (<i>Plant Insulation Co. v. Fibreboard Corp.</i> (1990) 224 Cal.App.3d 781, 787-788.) The plea in abatement "require[s] absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions." (Id., at p. 788 [emphasis added].) The identical cause of action must be involved in both suits, so that a judgment in the first action would be res judicata on the claim in the present lawsuit (claim preclusion). (<i>Bush v. Superior Court</i> (1992) 10 Cal. App. 4th 1374, 1384.) Here, the demurrer on this ground is overruled for two main reasons. First, there is only one action pending as the two matters were ordered consolidated for all purposes on 2/28/25. (See, ROA 280.) Thus, there is no concern that judgment in the first action would be res judicata on the second action as both actions were consolidated into one and are before a single judge. Similarly, there is no claim splitting as all claims have been consolidated into a single action. Second, the two separately filed complaints did not involve the same causes of action. As the parties point out, the First Action involves breach of contract and the Second Action involved declaratory relief. While both matters arise out of the same Lease, the relief sought is different. In the First
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	Action, Plaintiff claims Defendants breached the operative Lease, Plaintiff exercised its contractual and statutory rights to continue the Lease and sue for the monthly rents as they came due. Defendants vigorously dispute that they owe any further rent because the Lease was terminated back in April of 2023 when Plaintiff accepted surrender of the premises. Thus, while Plaintiff contends the Lease was not terminated in 2023 and the obligation to pay rent remains ongoing as it comes due, Defendants contend the Lease was terminated. In the Second Action, Plaintiff seeks a declaration of whether the Lease was terminated as Defendants contend because, if the Lease is declared terminated, then Plaintiff's damages may be affected. These are not the same causes of action, or the same relief. Based on this analysis, the Demurrers on this ground are OVERRULED. <u>Failure to State Sufficient Facts</u> – Overruled Code of Civ. Proc. § 1060 provides, in relevant part: "Any person interested under a written instrument...or under a contract...who desires a declaration of his or her rights or duties with respect to another...may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties...including a determination of any question of construction or validity arising under the instrument or contract..." Defendants each assert that this claim is not ripe for adjudication because it is expressly contingent on a future event. "Where the allegations of the complaint reveal the controversy to be conjectural, anticipated to occur in the future, or an attempt to obtain an advisory opinion from the court, the fundamental basis of declaratory relief is lacking." (<i>Rhonda S. v. Kaiser Found. Health Plan, Inc.</i> (2023) 94 Cal. App. 5th 643, 648. Here, however, there exists an actual controversy as to whether the Lease is continuing in effect (as Plaintiff contends) or whether it had been terminated (as Defendants contend), and if terminated, then what, if any, damages are owed. There is nothing conjectural about these issues and will not give rise to an advisory opinion. In fact, Defendants assert the termination occurred back in 2023. Thus, the trier of fact will need to determine whether (or not) the Lease was terminated. If the Lease was terminated, then the amount of damages must be calculated based on date of termination. Conversely, if the Lease was not terminated, then it remains ongoing. That the trier of fact must determine these issues in the future (at trial) does not defeat a claim for declaratory
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		relief. To put it another way, no action for declaratory relief would ever be ripe if it must be adjudicated in the present because adjudication always occurs in the future. Defendants also assert these claims fail because their position is correct and they will prevail at trial. However, whether Defendants ultimately prevail at trial on their defenses has no bearing on whether a declaratory relief claim is ripe for adjudication as pleaded in the complaint. Accordingly, the Demurrers on this ground are OVERRULED. Plaintiff to give notice. The parties and/or their counsel shall appear for the trial setting status conference.
56	Ayala v Nemel 23-01314526	Motion to Compel x3 Motion to Deem Facts Admitted By DEFT Withdrawal of Motion filed 4/18/2025 No appearance required